



IECEX PUBLICATION

**IEC System for Certification to Standards relating to Equipment for use
in Explosive Atmospheres (IECEX System)**

**IECEX Certified Service Facilities Scheme –
Part 4: Ex inspection and maintenance – Rules of Procedure**



THIS PUBLICATION IS COPYRIGHT PROTECTED

Copyright © 2013 IEC, Geneva, Switzerland

All rights reserved. Unless otherwise specified, no part of this publication may be reproduced or utilized in any form or by any means, electronic or mechanical, including photocopying and microfilm, without permission in writing from either IEC or IEC's member National Committee in the country of the requester.

If you have any questions about IEC copyright or have an enquiry about obtaining additional rights to this publication, please contact the address below or your local IEC member National Committee for further information.

IEC Central Office
3, rue de Varembe
CH-1211 Geneva 20
Switzerland

Tel.: +41 22 919 02 11
Fax: +41 22 919 03 00
info@iec.ch
www.iec.ch

About the IEC

The International Electrotechnical Commission (IEC) is the leading global organization that prepares and publishes International Standards for all electrical, electronic and related technologies.

About IEC publications

The technical content of IEC publications is kept under constant review by the IEC. Please make sure that you have the latest edition, a corrigenda or an amendment might have been published.

Useful links:

IEC publications search - www.iec.ch/searchpub

The advanced search enables you to find IEC publications by a variety of criteria (reference number, text, technical committee,...).

It also gives information on projects, replaced and withdrawn publications.

IEC Just Published - webstore.iec.ch/justpublished

Stay up to date on all new IEC publications. Just Published details all new publications released. Available on-line and also once a month by email.

Electropedia - www.electropedia.org

The world's leading online dictionary of electronic and electrical terms containing more than 30 000 terms and definitions in English and French, with equivalent terms in additional languages. Also known as the International Electrotechnical Vocabulary (IEV) on-line.

Customer Service Centre - webstore.iec.ch/csc

If you wish to give us your feedback on this publication or need further assistance, please contact the Customer Service Centre: csc@iec.ch.



IECEX 03-4

Edition 1.0 2013-03

IECEX PUBLICATION

**IEC System for Certification to Standards relating to Equipment for use
in Explosive Atmospheres (IECEX System)**

**IECEX Certified Service Facilities Scheme –
Part 4: Ex inspection and maintenance – Rules of Procedure**

INTERNATIONAL
ELECTROTECHNICAL
COMMISSION

PRICE CODE

ZZ

CONTENTS

FOREWORD.....	4
INTRODUCTION.....	5
1 Scope.....	7
2 Normative references	7
3 Definitions	7
4 Governing of the IECEX Certified Service Facilities Scheme	8
5 Principles of the IECEX Certified Service Facilities Scheme for Ex inspection and maintenance	8
5.1 IECEX Service Facility Certificate	8
5.2 Method of application	9
5.3 Acceptance	9
5.4 Permissions	9
5.5 Editions of standards, documents and guides	9
6 Confidentiality	10
7 Participation of countries in the IECEX Certified Service Facilities Scheme.....	10
8 IECEX instruments.....	10
8.1 IECEX Service Facility Certificate	10
8.1.1 Issue	10
8.1.2 Layout.....	10
8.1.3 Content	10
8.2 IECEX Facilities Audit Report	11
8.2.1 Content	11
8.2.2 Layout.....	11
8.2.3 Issue	11
8.2.4 Restrictions	11
9 Procedure to issue an IECEX Service Facility Certificate for Ex inspection and maintenance	11
9.1 Applicant	11
9.2 Documentation	11
9.3 Examination	12
9.4 Assessment of Service Facility's quality system	12
9.5 Completion.....	12
9.6 Surveillance	12
9.7 Changes not covered by the FAR	12
9.8 Ensuring conformity.....	13
9.9 Documentation retained	13
9.10 Surcharges.....	13
9.11 Suspension or cancellation.....	13
9.12 Notification of cancellation	14
9.13 Compliance with rules	14
9.14 Appeals.....	14

10	Acceptance of certification bodies	14
10.1	Acceptance of certification bodies (new ExCBs)	14
10.1.1	Conditions for acceptance	14
10.1.2	Application	14
10.1.3	Assessment.....	15
10.1.4	Resolution of differences.....	15
10.1.5	Report to ExMC.....	15
10.1.6	Acceptance	15
10.1.7	Notification.....	15
10.1.8	Changes in application	15
10.1.9	Extension of scope within the IECEx 03-4 Scheme.....	16
10.1.10	Reporting of decisions.....	16
10.1.11	Re-assessment	16
10.1.12	Withdrawal	16
10.1.13	Suspension	16
10.2	Acceptance of existing ExCBs	16
11	IECEX publications	17
11.1	Types of publications.....	17
11.2	Information to be available	17
11.3	IECEX Bulletin	17
11.4	Source of information	17
12	Complaints	17
Annex A (normative) Declaration by a certification body applying to become an Ex Certification Body for the IECEx Certified Service Facilities Scheme for Ex inspection and maintenance		18

INTERNATIONAL ELECTROTECHNICAL COMMISSION

**IECEX Certified Service Facilities Scheme –
Part 4: Ex inspection and maintenance –
Rules of Procedure**

FOREWORD

The IECEx Management Committee (ExMC) has prepared this publication.

All of the annexes to this publication are normative.

This publication is directly related to Publication IECEx 01 containing the Basic Rules of the IECEx System.

This edition of IECEx 03-4 takes effect immediately upon publication.

The text of this publication is based on the following documents:

Document	Report on Voting
1. ExMC/819A/RM 2. ExMC/746/INF	Not applicable

This edition of the Rules of Procedure was approved for publication during the 2012 ExMC Calgary meeting subject to any further comments received during a three month extension of the comment period. All comments received by 22nd March 2013 have been incorporated and accepted by ExMC Working Group 10.

INTRODUCTION

The IECEx is a single global certification framework based on the IEC International Standards. It caters for countries whose national standards are either identical to those of the IEC or else very close to IEC International Standards.

The IECEx is truly global in concept and practice, reduces trade barriers caused by different conformity assessment criteria in various countries, and helps industry to open up new markets.

The goal is to help manufacturers reduce costs and time while developing and maintaining uniform product evaluation to protect users against products that are not in line with the required level of safety.

The aim of the IECEx System and its Schemes is to ease international trade of Explosion Protected Equipment (termed Ex equipment) by eliminating the need for duplication of testing and certification, while preserving safety. IECEx operates as an international certification system covering products and services associated with the Ex industries and plants.

IECEX Schemes also aim the true view and approach of assure safety in hazardous areas during the whole life-cycle of Ex plants, which requires proper hazardous area classification, design, installation, inspection, maintenance and repair of explosion protected equipment.

The certification of the required competence of personnel engaged in tasks in hazardous areas is also covered by an IECEx Scheme.

Where do we commonly find Ex equipment and hazardous area?

Flammable gases, vapours and combustible dusts create potentially explosive atmospheres. Ex equipment in such areas include:

- Automotive refuelling stations or petrol stations
- Oil refineries, rigs and processing plants
- Oil and gas tankers, drilling ships and FPSO (Floating Production Storage Offloading vessels)
- Chemical processing plants
- Printing industries, paper and textiles
- Hospital operating theatres
- Aircraft refuelling and hangars
- Surface coating industries
- Underground coal mines
- Sewerage treatment plants
- Gas pipelines and distribution centres
- Grain handling and storage and processing (flour-milling industry)
- Woodworking areas
- Sugar refineries
- Light metal working, where metal dust and fine particles can appear

IECEX Certified Service Facilities Scheme – Part 4: Ex inspection and maintenance

While certification of new Ex equipment is covered by the IECEx Certified Equipment Scheme, as detailed in IECEx 02, the IECEx Certified Service Facilities Scheme provides a single international scheme for the assessment and certification of Ex related service facilities that have an impact on the ongoing compliance of Ex equipment and Ex installations with Ex safety standards.

Manufacturers producing new Ex equipment in accordance with their Ex Equipment Certification regime cannot be held responsible for the actions or in actions taken during Ex inspection and maintenance, required during the whole life cycle of the plant.

The IECEx Certified Service Facilities Scheme provides Ex equipment and Ex installations users, regulators and the community with the confidence that Ex safety is maintained when Ex equipment and installations are inspected and maintained by an IECEx Certified Service Facility in accordance with this Scheme.

Ex Service Facilities that achieve IECEx Certification are required to demonstrate compliance with stringent IECEx requirements including:

- Operational procedures and Ex inspection and maintenance techniques or methods meet IECEx technical requirements encompassing IEC 60079-17
- Possess and maintain in operating condition necessary facilities and equipment including test equipment and traceability of measurements
- IECEx Quality Management System (QMS) requirements, based on ISO 9001
- Competent responsible persons and operatives with current competencies related to Ex equipment and Ex inspection and maintenance standards or certification requirements, encompassing IEC 60079-17 and Units of Competency Ex 004 (Maintain equipment in explosive atmospheres), Ex 007 (Perform visual and close inspection of electrical installations in or associated with explosive atmospheres) and Ex 008 (Perform detailed inspection of electrical installations in or associated with explosive atmospheres) set forth in IECEx OD 504 (Specification for Units of Competency assessment outcomes)
- Others necessary for proper Ex inspection and maintenance

More information

Further information is available from the IECEx website: www.iecex.com, (containing free copies of the IECEx Rules of Procedure), from any of the IECEx Certification Bodies or directly from the IECEx Secretariat via the coordinates shown on the IECEx website.

IECEX Certified Service Facilities Scheme – Part 4: Ex inspection and maintenance – Rules of Procedure

1 Scope

This publication contains the Rules of Procedure of the IECEX Scheme, hereinafter referred to as the "Rules", for the certification of service facilities involved in Ex inspection and maintenance of equipment which is intended for use in explosive atmospheres (IECEX Certified Service Facilities Scheme – Part 4).

Rules covering the IECEX Certified Equipment Scheme and the IECEX Certification of Personnel Competencies Scheme are given in Publications IECEX 02 and IECEX 05 respectively.

These Rules relate to the Basic Rules of the IECEX System, as given in Publication IECEX 01.

2 Normative references

The following referenced documents are indispensable for the application of these Rules. For dated references, only the edition cited applies. For undated references, the latest edition of the referenced document (including any amendments) applies.

IECEX 01, *IEC System for Certification to Standards relating to equipment for Use in Explosive Atmospheres (IECEX System) – Basic Rules*

IECEX OD 504, *IECEX Scheme for Certification of Personnel Competencies for Explosive Atmospheres – Specification for units of competency assessment outcomes*

IEC 60079-17, *Explosive atmospheres – Part 17: Electrical installations inspection and maintenance*

ISO/IEC Guide 2, *Standardization and related activities – General vocabulary*

ISO/IEC 17000, *Conformity assessment – Vocabulary and general principles*

ISO/IEC 17021, *Conformity assessment – Requirements for bodies providing audit and certification of management systems*

ISO/IEC 17065, *Conformity assessment – Requirements for bodies certifying products, processes and services*

ISO 9001, *Quality management systems – Requirements*

3 Definitions

ISO/IEC Guide 2 and ISO/IEC 17000 give the basic definitions.

For the purpose of the IECEX Service Facilities Scheme – Part 4, the definitions contained in IECEX 02 and those below apply:

3.1

IECEX Certified Service Facilities Scheme – Part 4

the IECEx Scheme for the certification of service facilities involved in Ex inspection and maintenance of equipment intended for use in explosive atmospheres

3.2

IECEX Service Facility Certificate

a document issued under these Rules indicating that adequate confidence is provided that a duly identified Service Facility has been found to operate procedures that provide confidence that the work undertaken complies with IECEx requirements and is under the surveillance of an IECEx Certification Body (ExCB)

3.3

IECEX Facilities Audit Report (FAR)

a document that presents the results of an on-site assessment of a service facility's quality control system, equipment, operating procedures and competence of their staff, by an ExCB, to the requirements of the IECEx Scheme

3.4

Applicant

an organization who applies to an ExCB for an IECEx Service Facility Certificate for Ex inspection and maintenance

3.5

Service facility

an organization that carries out or controls such stages in Ex inspection and maintenance of Ex equipment, as required in IEC 60079-17

4 Governing of the IECEx Certified Service Facilities Scheme

This IECEx Certified Service Facilities Scheme (referred to throughout this document as "Scheme") shall be governed by the Ex Management Committee (ExMC), whose responsibilities in this respect are defined in the Basic Rules of the IECEx System, Publication IECEx 01.

IECEX 03-4 sets out the general rules and procedures of the IECEx Service Facilities Scheme covering Ex inspection and maintenance. These general rules are supplemented by the IECEx Scheme's Operational Documents. These Operational Documents are available to all IECEx Member Bodies, ExCBs, and participating Service Facilities.

The ExMC Secretary shall be responsible for the issuing and maintenance of Operational Documents which generally fall under the following categories:

- a) Document containing explanatory guidance (IECEX 03A)
- b) Document containing rules and procedures that supplement those contained in IECEx 03-2

The ExMC shall be kept informed on the currency of Operational Documents with ExMC agreement required for Operational Documents that fall under category b) above.

5 Principles of the IECEx Certified Service Facilities Scheme for Ex inspection and maintenance

5.1 IECEx Service Facility Certificate

The IECEx Certified Service Facilities Scheme provides the means for service facilities to obtain an IECEx Certificate that is intended to provide the international Ex community with confidence that such Service Facilities undertake the work in accordance with the technical and quality system requirements of the IECEx Service Facilities Scheme for Ex inspection and maintenance.

The aim of this IECEx Certified Service Facilities Scheme is to ensure that Ex inspection and maintenance Service Facilities comply with the following:

- Possess and maintain in operating condition the equipment (including specialized equipment) required for inspection and maintenance of Ex equipment and Ex installations
- The establishment and implementation of system procedures
- Possess as a minimum one person determined as Responsible Person, according to IEC 60079-17, competent in the Ex inspection and maintenance field by the ExCB
- Possession and maintenance of necessary test and measuring equipment that is adequate and under calibration control

IEC 60079-17 and IECEx Certified Service Facilities Scheme's Quality Management System (QMS) requirements, based on the relevant requirements of ISO 9001 with additional requirements specific to inspection and maintenance of Ex equipment, form the basis of the IECEx Certified Service Facilities Scheme for inspection and maintenance requirements.

The IECEx Service Facility Certificate for inspection and maintenance should be issued for the full scope of activity covered by IEC 60079-17 (excluding initial inspections) but may be issued for a specific activity that is clearly defined on the certificate.

Ex Service Facilities that have attained and maintain IECEx Certification may affix the IECEx logo to IECEx inspection and maintenance Reports providing that there is no misrepresentation of the scope of certification.

5.2 Method of application

An ExCB approved by the ExMC in accordance with these Rules and associated IECEx Operational Documents may issue IECEx Service Facility Certification for inspection and maintenance.

Applications from organizations seeking ExCB acceptance for the purpose of issuing IECEx Service Facility Certificates can be accepted from bodies that reside in an IECEx Participating Member Country. The application is made to the Secretary of the ExMC.

Refer to IECEx 01 regarding country membership of the IECEx.

5.3 Acceptance

Certification bodies are accepted into the IECEx Certified Service Facilities Scheme for inspection and maintenance following satisfactory assessment of their competence by assessors appointed by the ExMC as providing adequate confidence to regulatory authority, user, manufacturer and certification body interests.

Competence is judged by reference to ISO/IEC 17065 and ISO/IEC 17021 and IECEx Scheme requirements.

5.4 Permissions

Only ExCBs that have been accepted for the purpose of issuing IECEx Service Facility Certificates and reside in an IECEx Participating Member Country are permitted to issue IECEx Service Facility Certificates for inspection and maintenance.

5.5 Editions of standards, documents and guides

A new IECEx Certificate of Conformity (CoC) may be issued only to the current edition of standards, documents and guides indicated in Clause 2.

An upgrading of existing CoCs after publishing of a new edition of an IEC International Standard is required to be undertaken within a time period not exceeding 3 years.

CoCs not upgraded to the latest editions within this period shall be suspended or cancelled.

6 Confidentiality

All those participating in the IECEx Certified Service Facilities Scheme shall respect the confidentiality of any information that they obtain and take all reasonable steps to bind their staff and those working under contract to preserve that confidentiality. The effectiveness of such steps taken shall be evaluated as part of the IECEx assessment of the ExCB.

7 Participation of countries in the IECEx Certified Service Facilities Scheme

In order for a country to participate in the management of the IECEx Certified Service Facilities Scheme the country must first be a member of the IECEx System and comply with the requirements for IECEx Membership, as detailed in IECEx 01.

Countries that are existing members of the IECEx System shall be considered members of the IECEx Certified Service Facilities Scheme.

8 IECEx instruments

8.1 IECEx Service Facility Certificate

8.1.1 Issue

An ExCB, on the basis of a satisfactory IECEx Facilities Audit Report (FAR), issues an IECEx Service Facility Certificate certifying that the Ex inspection and maintenance service identified on the certificate conforms in all relevant respects with the IECEx requirements concerning technical and Quality Management System procedures; and utilizes at least one person identified as a Responsible Person, as defined in IEC 60079-17 and demonstrated as competent by the ExCB.

The principle purpose of an IECEx Service Facility Certificate is to provide independent verification that the Service Facility, listed on the IECEx Service Facility Certificate, has the capability to comply with IECEx Certified Service Facilities Scheme requirements.

NOTE 1 The ExCB obtains evidence to verify the competence of the Service Facility staff, as claimed by the Service Facility, during the assessment which may be by way of examination, interviews, demonstration of skills or a combination of these. Formal training, both internal and external, concerning Ex should also be taken into account.

NOTE 2 The requirements set forth in IECEx OD 504 (Specification for Units of Competency Assessment Outcomes), Units of Competency Ex 004 (Maintain equipment in explosive atmospheres), Ex 007 (Perform visual and close inspection of electrical installations in or associated with explosive atmospheres) and Ex 008 (Perform detailed inspection of electrical installations in or associated with explosive atmospheres) should be used as a reference.

8.1.2 Layout

The ExMC shall decide on the layout and content of IECEx Service Facility Certificates.

8.1.3 Content

The IECEx Service Facility Certificate shall contain at least the following information:

- Certificate number
- Date of issue

- Indication of changes to certification and amendment issue
- Clear description of the Ex inspection and maintenance service and any limitations of scope
- Reference to the requirements set forth in IEC 60079-17
- Name and address of the Service Facility for Ex inspection and maintenance
- Location that is within the scope of the IECEX Service Facility Certificate. A certificate shall only cover one location; in case of multiple locations each location shall have its own certificate
- Reference number of the original FAR that enabled the IECEX Service Facility Certificate to be issued
- Name of the issuing ExCB
- Conditions on certification, if any

8.2 IECEX Facilities Audit Report

8.2.1 Content

A FAR is prepared and issued by an ExCB recording the assessment of an Ex Service Facility's quality system for compliance with the IECEX inspection and maintenance requirements. The assessment includes assessing conformity of the Service Facility's documented quality system with the requirements of the IECEX Certified Service Facilities Scheme in addition to assessing the implementation of the quality system by the Service Facility and the system for verifying competency of Ex inspection and maintenance staff.

8.2.2 Layout

The ExMC shall prepare a document detailing Quality Management System (QMS) requirements for the Scheme and the layout and content of FARs.

8.2.3 Issue

Upon issuing FARs, ExCBs shall ensure that the FAR refers to the location(s) of the Service Facility's activities.

8.2.4 Restrictions

The FAR is a document used in the preparation of the IECEX Service Facility Certificate and is the basis for ongoing surveillance of the Service Facility. It shall not be used in any form of advertising or sales promotion in a way that the information may be misrepresented.

9 Procedure to issue an IECEX Service Facility Certificate for Ex inspection and maintenance

9.1 Applicant

An Ex Service Facility may make an application for an IECEX Service Facility Certificate for inspection and maintenance to any ExCB that has been accepted for this purpose by ExMC. The applicant shall declare that the same application is not ongoing with any other ExCB nor has been refused in a previous stage with the same ExCB.

9.2 Documentation

The documentation submitted by the applicant shall accurately identify the Ex inspection and maintenance services for which certification is required, the names of the Responsible Persons and Ex inspection and maintenance operatives that are to be verified as being competent as well as their location where the Ex Service Facility conducts its activities.

The Service Facility shall have a competence management system for the appointment and maintenance of Responsible Persons and operatives. This competence management system shall be reviewed by the ExCB.

Reference should be made to the requirements set forth in IECEx OD 504 (Specification for Units of Competency Assessment Outcomes), Units of Competency Ex 004 (Maintain equipment in explosive atmospheres), Ex 007 (Perform visual and close inspection of electrical installations in or associated with explosive atmospheres) and Ex 008 (Perform detailed inspection of electrical installations in or associated with explosive atmospheres).

9.3 Examination

The ExCB shall conduct an examination of the documentation to verify that the Ex inspection and maintenance service is in conformity with IECEx requirements, which embody the requirements of IEC 60079-17.

9.4 Assessment of Service Facility's quality system

The ExCB shall assess the conformity of the Service Facility's Quality Management System (QMS) and associated quality plan(s) for compliance with IECEx Certified Service Facilities Scheme requirements. The ExCB shall issue an IECEx FAR, only when full conformity with IECEx Certified Service Facilities Scheme requirements has been established.

A FAR has a limited duration of 3 years and can be withdrawn or suspended if the results of intermediate surveillance assessments are unsatisfactory.

9.5 Completion

Upon satisfactory completion of the work, the ExCB shall review the FAR to ensure that it covers the Service Facility location, the specified scope of Ex inspection and maintenance service and the type of product and Ex protection, where applicable. If the review is satisfactory the ExCB shall issue the FAR together with an IECEx Service Facility Certificate to the applicant, with a copy of each being retained by the ExCB. The Service Facility and the ExCB shall each retain a set of the documentation referred to in the certificate.

A FAR summary report is published on the IECEx website: www.iecex.com, containing at least the Service Facility's location, the type of service, any limitations, the type of explosion protection of the equipment to be inspected and maintained and the expiration date of the FAR.

9.6 Surveillance

The ExCB shall sign an agreement with the Service Facility to enable the ExCB to carry out, or arrange for another body to carry out on its behalf, periodic surveillance of the Service Facility's Quality Management System (QMS) and quality plan(s) that shall include on-site assessments at the Service Facility's premises. The frequency of such surveillance, inspection and assessment shall be set at a frequency of once every 12 months.

9.7 Changes not covered by the FAR

If the Service Facility wishes to make any changes, not covered by the FAR, that may compromise the Ex inspection and maintenance service listed on the certificate, the Service Facility shall apply for an addendum to the ExCB which granted the IECEx Service Facility Certificate. The Service Facility is required to describe the changes and the measures adopted to ensure continuing conformity with IECEx requirements.

The ExCB shall arrange for such work as is necessary to be carried out to verify that the service incorporating the change will still conform to the Scheme requirements. The ExCB shall issue a FAR, only when (continued) full conformity with IECEx Certified Service Facilities Scheme requirements has been established.

Upon satisfactory completion of the work, the ExCB shall review the FAR to ensure that it covers the requested change(s). If the review is satisfactory the ExCB shall issue the FAR together with a new certificate authorizing the change to the applicant, with a copy of each being retained by the ExCB.

The Ex Service Facility and the ExCB shall each retain a set of the documentation referred to in the certificate.

9.8 Ensuring conformity

The Service Facility has the responsibility to ensure that all Ex equipment and installations are inspected and maintained in accordance with IECEx and IEC 60079-17 requirements. Following such work, the Service Facility shall issue their clients with an IECEx inspection and maintenance Report that may bear the IECEx logo.

The Ex Service Facility shall ensure that the IECEx logo or IECEx Service Facility Certificate is not subjected to misuse or misrepresentation. Such misuse or misrepresentation could lead to suspension or withdrawal of the IECEx Service Facility Certificate.

9.9 Documentation retained

In placing an application with an ExCB, the Service Facility authorizes the ExCB to keep, for future reference, photographs and technical documentation of the Service Facility. Such reference material shall be confidential.

9.10 Surcharges

An Ex Service Facility who is not located in an IECEx participating country and an applicant acting on behalf of a Service Facility in such a country shall pay a contribution to the costs of the IECEx Scheme in the form of a surcharge for each application, the amount to be decided by the ExMC. The surcharge is to be collected by the ExCB handling the application, and remitted to the IECEx account.

NOTE At the moment of publication of these Rules, the surcharge amount is zero.

9.11 Suspension or cancellation

An IECEx Service Facility Certificate may be suspended or cancelled by the issuing ExCB in case:

- there is no payment of outstanding fees;
- it has been issued in error;
- the holder requests cancellation;
- where the certificate or IECEx logo or Mark is used in a misleading way;
- the Ex inspection and maintenance service no longer complies with the IECEx requirements; or
- the Service Facility's Quality Management System (QMS) and associated quality plan(s) no longer provide adequate confidence that Ex equipment will be inspected and maintained in accordance with IECEx requirements.

The ExCB shall give due notice to the Service Facility of such suspension or cancellation and shall give the reason(s).

When an IECEx Service Facility Certificate is suspended or when it has been cancelled, the Service Facility shall no longer describe the Ex inspection and maintenance service, or their organization, as "IECEX certified", nor shall he use the IECEx logo on IECEx inspection and maintenance Reports.

The ExCB responsible for issuing the IECEX Service Facility Certificate shall determine the effect of equipment already inspected and maintained prior to the cancellation of the certificate.

9.12 Notification of cancellation

When an IECEX Service Facility Certificate has been cancelled, the issuing ExCB shall notify the ExMC Secretary immediately. Cancellation of certificates shall be published on the IECEX website: www.iecex.com.

9.13 Compliance with rules

The applicant shall follow the rules of procedure of the ExCB and shall confirm readiness to comply with all the relevant provisions regarding, for example, facility surveillance and payment of fees.

9.14 Appeals

Should a Service Facility or applicant be refused the issuing of an IECEX FAR or IECEX Service Facility Certificate or be the subject of suspension or cancellation of an IECEX Service Facility Certificate and disagree with this decision, he may lodge an appeal to the IECEX Board of Appeals.

10 Acceptance of certification bodies

10.1 Acceptance of certification bodies (new ExCBs)

10.1.1 Conditions for acceptance

A certification body shall be accepted as an ExCB by the ExMC and given the right to issue IECEX Service Facility Certificates and FARs, under the following conditions:

- The certification body shall be located in a participating country
- The certification body shall be recognized at national level for operating Ex certification or approval schemes for specified types of protection
- The competence of the certification body to comply with these Rules shall be demonstrated by assessment. The general competence, efficiency, experience, familiarity with the relevant standards and the types or concepts of protection included in those standards and competence to carry out quality management system assessments as well as compliance with ISO/IEC 17065 and ISO/IEC 17021 shall be assessed. Acceptance in another IEC Conformity Assessment System or IECEX Scheme or accreditation by a recognized national accreditation body shall be taken into account. In those cases, the ExMC shall decide upon the extent of the assessment that is necessary

10.1.2 Application

The candidate certification body, via the national Member Body of the IECEX System, shall make an application for the acceptance of a certification body for the issuing of IECEX Service Facility Certificates.

The application shall be submitted to the Secretary of the ExMC and shall be accompanied by a declaration as detailed in Annex A. Applications from ExCBs currently operating in the IECEX Certified Equipment Scheme, seeking to participate in the IECEX Certified Service Facilities Scheme shall submit an application for extension of scope to the IECEX Secretariat.

10.1.3 Assessment

The candidate certification body shall be assessed according to the IECEx Assessment procedures to determine that the conditions according to 10.1.1 are fulfilled. The assessment may include witnessing by an IECEx Assessor of an assessment of a service facility conducted by the candidate ExCB.

Assessors approved by ExMC shall carry out the assessment. The candidate shall be given the names and current appointments of the assessors proposed. All those IECEx Assessors proposed will have a working knowledge of Ex inspection and maintenance practises. Candidates may object "for cause" (reasons to be stated) to the appointment of the assessors.

The candidate to be assessed shall express its willingness to pay the professional fees of the assessors. The amount will be decided by the ExMC, and will include reasonable travelling and living expenses arising from the assessment. An estimate of these expenses shall be provided to the candidate in advance and agreed by the candidate.

IECEX Assessment Teams shall report to the Secretary of the ExMC who shall manage all assessments, including the appointment of assessment teams from a list of assessors approved by the ExMC, to ensure assessments are carried out in a timely manner and in accordance with the requirements of the Scheme.

10.1.4 Resolution of differences

During the assessment, the assessors shall prepare a draft report that shall be discussed with the management of the candidate certification body. Efforts should be made to resolve any differences of opinion between the assessors and the candidate during this discussion.

10.1.5 Report to ExMC

The assessors shall submit to the ExMC, with a copy to the representatives of the candidate certification body, a confidential report containing their findings and recommendations, taking into account the declaration submitted together with the application. The candidate may attend an ExMC meeting or submit written comments in order to respond to enquiries regarding its application.

10.1.6 Acceptance

The ExMC shall decide upon the acceptance of the candidate certification body at a meeting or by correspondence. In the latter case, the decision shall be reported to the next meeting of the ExMC and recorded in the minutes.

10.1.7 Notification

If the decision of the ExMC is positive, the Secretary of the ExMC shall inform the candidate certification body in writing.

If the decision of the ExMC is negative, the Chairman of the ExMC may, depending on the findings, suggest to the candidate certification body

- a) to withdraw the application, or
- b) to accept a new assessment.

10.1.8 Changes in application

Each ExCB shall inform the Secretary of the ExMC about changes in the information given according to 10.1.2.

10.1.9 Extension of scope within the IECEX 03-4 Scheme

When an ExCB wishes to extend its scope of acceptance, an application shall be made to the Secretary of the ExMC via the Member Body of the IECEX System. When the ExCB has been assessed within the last five years, the members of the Assessment Team who assessed the ExCB should give their comments on the application.

The IECEX Officers shall decide whether the extension can be accepted on the basis of the information thus available or whether a full or limited assessment will be needed. Decisions of the officers shall be reported to the next ExMC meeting for endorsement.

The matter shall either be submitted to a meeting of the ExMC for decision or handled according to 10.1.10.

10.1.10 Reporting of decisions

The ExMC may delegate the decisions according to 10.1.9 to the Chairman and Vice-Chairman of the ExMC to be made by correspondence between meetings. Such a decision shall be reported to the next meeting of the ExMC and recorded in the minutes.

10.1.11 Re-assessment

By means of re-assessment to the extent and frequency deemed necessary, the ExMC shall verify whether ExCBs are still fulfilling the conditions of 10.1.1.

10.1.12 Withdrawal

An ExCB wishing to withdraw from the IECEX Certified Service Facilities Scheme shall notify the Secretary of the ExMC via the Member Body of the IECEX Certified Service Facilities Scheme at least one year in advance and shall indicate the reason for the withdrawal and the date from which the withdrawal will become effective.

10.1.13 Suspension

The acceptance of an ExCB may be suspended or withdrawn by the ExMC if the ExCB no longer fulfils the conditions of 10.1.1 or if in the opinion of the ExMC, the ExCB hampers the aim, operation or development of the IECEX Certified Service Facilities Scheme, fails to take action regarding misuse of IECEX Service Facility Certificate, or violates these Rules.

Before such a decision is made, the ExCB shall be given the opportunity to take corrective action over a period of six months and state its own opinion on the matter.

A decision to suspend or withdraw the acceptance of an ExCB shall require agreement at a meeting of the ExMC by a majority of at least four fifths of the total number of members. Members not attending that meeting shall have the right to cast their vote in writing by registered mail, or e-mail to the Secretary of the ExMC prior to the meeting.

In case of a suspension or a withdrawal, the certification body in question shall not be allowed to claim any relationship with the IECEX Certified Service Facilities Scheme.

10.2 Acceptance of existing ExCBs

ExCBs previously accepted according to IECEX 02, IECEX Certified Equipment Scheme, shall be assessed according to 10.1.3.

11 IECEx publications

11.1 Types of publications

The publications of the IECEx System shall accommodate the relevant information regarding Ex inspection and maintenance.

In addition, the ExMC through its Secretariat may issue Operational Documents to ensure the common application of these Rules of procedures by all ExCBs.

The ExMC Secretary shall maintain a current list of all Operational Documents.

11.2 Information to be available

The following information shall be made readily available to the public:

- A current list of accepted ExCBs
- Service facilities holding IECEx Service Facility Certificates
- IECEx Service Facility Certificates

This and other relevant information may be made available on the IECEx website: www.iecex.com.

11.3 IECEx Bulletin

The Bulletin detailed in IECEx 02 shall be amended to accommodate the relevant information regarding the IECEx Certified Service Facilities Scheme.

11.4 Source of information

The information published in the IECEx publications is based on information given by the Member Bodies of the IECEx Certified Service Facilities Scheme and ExCBs. Neither the IEC nor the Secretary of the ExMC is therefore liable for the accuracy of that information. Publication of commercial information shall be avoided.

12 Complaints

If there are complaints concerning the actions of an ExCB that the ExMC cannot resolve, the ExMC or the complainant shall have the right to request the IEC Conformity Assessment Board (CAB) for appropriate action.

Annex A

(normative)

Declaration by a certification body applying to become an Ex Certification Body for the IECEx Certified Service Facilities Scheme for Ex inspection and maintenance

The declaration by a certification body applying to become an Ex Certification Body (ExCB) under the IECEx Certified Service Facilities Scheme, shall be a self-contained document including the following information:

- a) A description of the body which gives, in addition to an organization chart, information about the legal status of the body, the address(es) at which it carries out its operations
 - b) The means by which the body will demonstrate compliance with ISO/IEC 17021 and ISO/IEC 17065
 - c) The responsibilities at national level concerning certification and the schemes operated
 - d) The arrangements for appeal, the documents available for providing supporting information, for example with regard to existing accreditation
 - e) The details of senior management and staff with competence in the validation of Ex Service Facilities
 - f) A list of the type of Ex inspection and maintenance services for which the body wishes to issue IECEx Service Facility Certificates
 - g) A statement of the number of certificates issued in the preceding two years for each type of protection, concerning any related Ex Certification Scheme
 - h) A statement that the body will abide by the Rules and use its best endeavours to assist in the achievement of the aims and objectives of the IECEx System
-

INTERNATIONAL
ELECTROTECHNICAL
COMMISSION

3, rue de Varembé
PO Box 131
CH-1211 Geneva 20
Switzerland

Tel: + 41 22 919 02 11
Fax: + 41 22 919 03 00
info@iec.ch
www.iec.ch